Memorandum of Understanding
Flanagan Pine Branch Trust

Trustee Succession, Interest Redistribution, and Administrative Update

Trust: Flanagan Pine Branch Trust
Settlor: Dorothy E. Flanagan (deceased), Ellsworth, Maine
Date of Trust Agreement: 2005
Type: Irrevocable
Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)
Hancock County, Maine
Deed Reference: TR 31 PG 07 PC 10
Date of this Memorandum: _____, 2026

I. Purpose and Authority

This Memorandum of Understanding ("MOU") formalizes all actions taken with respect to the Flanagan Pine Branch Trust ("Trust") during the transition process completed in 2026. It serves as a single comprehensive record incorporating the following completed actions:

A. The resignation of the initial Co-Trustees.
B. The election and acceptance of Successor Co-Trustees.
C. The recording of an Affidavit of Successor Trustee.
D. The transfer of Trust banking and insurance accounts.
E. The modification of beneficial interests pursuant to a Non-Judicial Settlement Agreement under 18-B M.R.S. Section 111.

This MOU is a post-election concluding record. It is to be circulated only after the initial Co-Trustees have resigned, Elizabeth Mary Young has signed her pre-election acceptance of the special one-week Limited Use Right Agreement, the beneficiary vote has been completed, and the Successor Co-Trustees have accepted their appointments. It is not a prerequisite to the trustee vote.

The administrative actions (A through D) were taken under the authority of Article II of the Trust Agreement, which permits modification of administrative provisions for tax or administrative purposes so long as beneficial interests are not materially affected.

The substantive modifications (E) were executed by all interested persons pursuant to a Non-Judicial Settlement Agreement under 18-B M.R.S. Section 111 of the Maine Uniform Trust Code.

II. Resignation of Initial Co-Trustees

The initial Co-Trustees named in Article 10.1 of the Trust Agreement have resigned:

Jane Elizabeth Birckhead -- Resignation dated _____
Elizabeth Mary Young -- Resignation dated _____

Each resignation was made pursuant to Article 10.2 of the Trust Agreement and 18-B M.R.S. Section 705 of the Maine Uniform Trust Code. Thirty (30) days' notice was provided to all beneficiaries. Signed Resignations of Trustee are incorporated herein by reference.

III. Election of Successor Co-Trustees

Pursuant to Article 10.2 of the Trust Agreement, a vote of the beneficiaries was conducted on _____, 2026. All five (5) of the Settlor's living children were eligible to vote:

1. Mary Jean Foss
2. John Michael Flanagan
3. Jane Elizabeth Birckhead
4. Elizabeth Mary Young
5. Christopher Joseph Flanagan

Result: A majority of the beneficiaries voted in favor of electing John Michael Flanagan and Christopher Joseph Flanagan as Successor Co-Trustees.

Votes in Favor: _____
Votes Opposed: _____
Votes Abstain: _____

Both Successor Co-Trustees accepted their appointment and agreed to be bound by all terms of the Trust Agreement. The signed Record of Beneficiary Vote is incorporated herein by reference.

IV. Governance

Pursuant to Article 8.2 of the Trust Agreement, while only two (2) Trustees are serving, the concurrence and joinder of both shall be required for all matters pertaining to the administration of the Trust. This includes the assessment of fees (Article 5.3), the approval of capital improvements, and any potential sale of the Camp Property (Article 5.5).

V. Legal Title and Recording

An Affidavit of Successor Trustee was executed by John Michael Flanagan and Christopher Joseph Flanagan and recorded in the Hancock County Registry of Deeds pursuant to 18-B M.R.S. Section 1013 of the Maine Uniform Trust Code.

Date of Recording: _____
Book: _____ Page: _____

This recording serves as public notice of the change in Trustees and confirms the authority of the Successor Co-Trustees to execute deeds, mortgages, and other instruments on behalf of the Trust with respect to the real property at 321 Phillips Way, Ellsworth, Maine (Deed Ref: TR 31 PG 07 PC 10).

VI. Administrative Transfer of Accounts

The Successor Co-Trustees have completed the following administrative transfers:

Banking: All Trust accounts at Camden National Bank have been transferred to the names of the Successor Co-Trustees.
Date completed: _____

Insurance: MMG Insurance Policy DW 0323180 has been updated to name the Successor Co-Trustees as the primary insured fiduciaries.
Date completed: _____

VII. Modification of Beneficial Interests

Pursuant to a Non-Judicial Settlement Agreement dated _____, 2026, executed by all interested persons under 18-B M.R.S. Section 111, the following modifications to beneficial interests were made. The complete Non-Judicial Settlement Agreement and its Exhibits are incorporated herein by reference.

A. Elizabeth Mary Young Interest Forfeiture

Elizabeth Mary Young voluntarily forfeited her entire beneficial interest in the Trust in exchange for:

Release from all financial obligations under Article 5.3.

A limited, non-perpetual use right of one (1) aggregate week of summer use per calendar year for herself, Edward Joseph Young IV, and John Nelson Young, only while the Trust owns the Camp Property and exists.

The week consists of seven (7) consecutive days. Weeks typically begin on Sunday and end on Saturday, but an alternate seven-day period may be requested and will be accommodated if available and if it does not conflict with or materially disrupt the overall annual schedule or adjacent scheduled weeks. Requested dates may be submitted during the preliminary scheduling period in the last week of January, and the annual schedule is finalized by the end of March. If the named users request their week later, their choices are limited to weeks not already requested or scheduled, as applicable. An unused week does not carry over, and no make-up week is owed.

THIS LIMITED USE RIGHT IS NOT PERPETUAL. It automatically and permanently terminates if the Trust is dissolved, terminated, or otherwise ceases to exist, or if the Trust sells, transfers, conveys, or otherwise ceases to own the Camp Property. No compensation, replacement property, substitute week, carryover week, or right against a purchaser or future owner is owed. The applicable death-termination provisions are stated in Exhibit A.

Elizabeth Mary Young, Edward Joseph Young IV, John Nelson Young, and their guests use the Camp Property entirely at their own risk and assume the risks stated in Exhibit A. To the fullest extent permitted by law, the Trust, its Trustees, beneficiaries, agents, and representatives are not liable for accidents, injuries, illness, death, or personal-property loss or damage arising from that use. The named users are responsible for their guests and minors in their party.

No service fee or use fee will be charged for exercising the limited use right. The named users remain responsible for the reasonable cost of repairing or replacing Trust property, amenities, or equipment damaged by them or their guests beyond ordinary wear and tear.

This forfeiture includes all voting rights, all claims to sale proceeds, and all rights under Articles 5.5, 5.6, and 5.7. The forfeited interest was redistributed equally (5% each) to the four remaining branches.

See Non-Judicial Settlement Agreement, Section IV, and Exhibit A.

B. Transfer of Mary Jean Foss's Interest

Mary Jean Foss transferred her entire 25% beneficial interest to her children:

Jennifer Anne Yommer: 12.5%
Martha Jane Foss: 12.5%

Mary Jean Foss relinquished all beneficial interest, voting rights, and financial obligations.

See Non-Judicial Settlement Agreement, Section V, and Exhibit B.

C. Transfer of Jane Elizabeth Birckhead's Interest

Jane Elizabeth Birckhead transferred her entire 25% beneficial interest to Joseph Morgan Birckhead after Diana Elizabeth Birckhead voluntarily forfeited and relinquished the 12.5% beneficial interest she would otherwise have received:

Joseph Morgan Birckhead: 25.0%
Diana Elizabeth Birckhead: 0.0%

Jane Elizabeth Birckhead relinquished all beneficial interest, voting rights, and financial obligations. Diana Elizabeth Birckhead relinquished all current beneficial interest, voting rights, use rights, purchase rights, sale-proceeds claims, and financial obligations associated with Jane Elizabeth Birckhead's branch, subject to the re-entry provision in Exhibit C.

See Non-Judicial Settlement Agreement, Section VI, and Exhibit C.

D. Spousal Rights Clarification

The parties clarified the succession of beneficial interests with respect to spouses, supplementing Article 5.7.

Upon a beneficiary's death, the Article 5.7 right of first refusal applies first. If not exercised, the interest passes to the beneficiary's adult children, or if none, to the surviving spouse as a bridge to the next generation.

See Non-Judicial Settlement Agreement, Section VII, and Exhibit D.

VIII. Final Ownership Structure

Following all actions described in this MOU, the beneficial interests in the Flanagan Pine Branch Trust are as follows:

Beneficiary	Interest	Voting
John Michael Flanagan	25.0%	Yes
Christopher Joseph Flanagan	25.0%	Yes
Jennifer Anne Yommer	12.5%	Yes
Martha Jane Foss	12.5%	Yes
Joseph Morgan Birckhead	25.0%	Yes
Total	100.0%	

Limited Use Right Only (No Interest, No Vote, No Expenses):
Elizabeth Mary Young
Edward Joseph Young IV
John Nelson Young
-- One (1) aggregate week of summer use per year, subject to Exhibit A

No Beneficial Interest (Transferred or Forfeited):
Mary Jean Foss
Jane Elizabeth Birckhead
Diana Elizabeth Birckhead

IX. Successor Co-Trustees

John Michael Flanagan
Address: _____
_____
Phone: _____
Email: _____

Christopher Joseph Flanagan
Address: _____
_____
Phone: _____
Email: _____

X. Incorporated Documents

The following documents are incorporated into this MOU by reference and form part of the complete record of the Trust transition:

Phase 1 -- Pre-Election Actions

1. Resignation of Trustee -- Jane Elizabeth Birckhead
2. Resignation of Trustee -- Elizabeth Mary Young
3. Elizabeth Mary Young's signed pre-election acceptance of Exhibit A, the special one-week Limited Use Right Agreement

Phase 2 -- Beneficiary Vote

4. Notice of Beneficiary Vote
5. Record of Beneficiary Vote for Election of Successor Trustees

Phase 3 -- Recording and Administrative Transfer

6. Affidavit of Successor Trustee (recorded at Hancock County Registry of Deeds)
7. Bank Authorization Letter -- Camden National Bank
8. Insurance Update Request -- MMG Insurance (Policy DW 0323180)

Phase 4 -- Post-Election Beneficial Interest Modifications and Ratification

9. Non-Judicial Settlement Agreement (18-B M.R.S. Section 111)
10. Exhibit A: Elizabeth Mary Young Forfeiture and Limited Use Right, countersigned by the Successor Co-Trustees
11. Exhibit B: Transfer of Interest -- Mary Jean Foss to Jennifer Anne Yommer and Martha Jane Foss
12. Exhibit C: Transfer of Interest -- Jane Elizabeth Birckhead to Joseph Morgan Birckhead with Diana Elizabeth Birckhead forfeiture
13. Exhibit D: Spousal Rights Clarification

Original Trust Document

14. Flanagan Pine Branch Trust Agreement (2005), Settlor: Dorothy E. Flanagan

XI. Governing Law

This MOU and all incorporated documents shall be governed by the laws of the State of Maine, including the Maine Uniform Trust Code (18-B M.R.S.), consistent with Article XIII of the Trust Agreement.

XII. Severability

If any provision of this MOU or any incorporated document is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

XIII. Counterparts and Separate Acknowledgments

This MOU may be executed in counterparts. Each counterpart shall be deemed an original, and all counterparts together shall constitute one memorandum. Signers may execute separate signature pages. Electronic signatures may be used to the extent permitted by applicable law and agreed by the parties; however, each signer must separately complete a valid notarial acknowledgment, whether in person or through a legally authorized remote online notarization process. Each completed acknowledgment shall identify this MOU and be attached to the fully assembled MOU.

XIV. Acknowledgement and Signatures

Each undersigned party acknowledges that:

a. They have read and understand the terms of this MOU.
b. They have had the opportunity to consult with independent legal counsel.
c. They execute this MOU voluntarily.
d. All actions described herein have been completed as stated.

Successor Co-Trustees:

John Michael Flanagan, Successor Co-Trustee
Signature: _____
Date: _____

Christopher Joseph Flanagan, Successor Co-Trustee
Signature: _____
Date: _____

Active Beneficiaries:

John Michael Flanagan
Signature: _____
Date: _____

Christopher Joseph Flanagan
Signature: _____

Date: _____

Jennifer Anne Yommer
Signature: _____
Date: _____

Martha Jane Foss
Signature: _____
Date: _____

Joseph Morgan Birckhead
Signature: _____
Date: _____

Former Beneficiaries / Transferors / Forfeiting Parties:

Mary Jean Foss
Signature: _____
Date: _____

Jane Elizabeth Birckhead
Signature: _____
Date: _____

Elizabeth Mary Young
Signature: _____
Date: _____

Diana Elizabeth Birckhead
Signature: _____
Date: _____

Limited Use Right Holders:

Edward Joseph Young IV
Signature: _____
Date: _____

John Nelson Young
Signature: _____
Date: _____

Individual Notary Acknowledgment -- Complete One for Each Signer

Document: Final Memorandum of Understanding concerning the Flanagan Pine Branch Trust

State of _____
County of _____

This record was acknowledged before me on _____.
Date

Name of individual signer: _____

Capacity, if applicable: _____

Party represented, if applicable: _____

Signature of notarial officer: _____

Stamp or printed name: _____

Title of office: _____

My commission expires: _____

[Notarial stamp or seal]

Instruction: Reproduce and attach one completed acknowledgment for each signer. A notarial officer may use a different certificate form that complies with the law governing that notarial act.